

24STCV14837 24STCV14837

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-09-09

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Case Number: 24STCV14837 Hearing Date: September 9, 2026 Dept: 309

Superior

Court of California

County

of Los Angeles

DEPARTMENT 309

TENTATIVE RULING

VICTOR

GARCIA

vs.

GENERAL

MOTORS, LLC

Case No.: 24STCV14837

Hearing

Date: September 9, 2026

Plaintiff is

awarded \$22,000 in attorney fees.

On 5/13/2024,

Plaintiff Victor Garcia (Plaintiff) initiated this action against Defendant

General Motors, LLC (Defendant). On 7/15/2024, Plaintiff filed a first amended complaint (FAC) alleging: (1) breach of implied warranty; (2) breach of express warranty; (3) fraudulent concealment; and (4) violation of the Consumers Legal Remedies Act (CLRA).

On 5/11/2026,
Plaintiff moved for attorney fees and costs totaling \$67,297.17.

Legal Standard

The party
claiming attorneys' fees must establish entitlement to such fees and the reasonableness of the fees claimed. (Civic Western Corporation v. Zila Industries, Inc. (1977) 66 Cal.App.3d 1, 16.) "Except as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties[.]" (CCP § 1021.)

"It is well
established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion." (Melnyk v. Robledo (1976) 64 Cal.App.3d 618, 623.)
In exercising its discretion, the court should
consider a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in handling the matter, the attention given, the success or failure, and the resulting judgment. (Id.)

In
determining what constitutes a reasonable compensation for an attorney who has rendered services in connection with a legal proceeding, the court may and should consider the nature of the litigation, its difficulty, the amount involved, the skill required and the skill employed in handling the litigation, the attention given, the success of the attorneys' efforts, their learning, their age, and their experience in the particular type of work demanded the intricacies and importance of the litigation, the labor and necessity for skilled legal training and ability in trying the cause, and the time consumed. (Stokus v. Marsh (1990) 217 Cal.App.3d 647, 657.)

In

determining the proper amount of fees to award, courts use the lodestar method. The lodestar figure is calculated by multiplying the total number of reasonable hours expended by the reasonable hourly rate. “Fundamental to its determination ... [is] a careful compilation of the time spent and reasonable hourly compensation of each attorney ... in the presentation of the case.” (Serrano v. Priest (1977) 20 Cal.3d 25, 48 (Serrano III).) A reasonable hourly rate must reflect the skill and experience of the attorney. (Id. at 49.) “Prevailing parties are compensated for hours reasonably spent on fee-related issues. A fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether.” (Serrano v. Unruh (1982) 32 Cal.3d 621, 635 (Serrano IV); see also Weber v. Langholz (1995) 39 Cal.App.4th 1578, 1587 (“The trial court could make its own evaluation of the reasonable worth of the work done in light of the nature of the case, and of the credibility of counsel’s declaration unsubstantiated by time records and billing statements.”))

Reasonable

attorney fees should be based on an objective standard of reasonableness, i.e., the market value of services rendered, not on some notion of cost incurred. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1090.) The value of legal services performed in a case is a matter in which the trial court has its own expertise. (Id. at 1096.) The trial court may make its own determination of the value of the services contrary to, or without the necessity for, expert testimony. (Id.) The trial court makes its determination after consideration of a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case. (Id.)

Discussion

Plaintiff

seeks \$67,297.17 in attorney fees and costs comprising of a lodestar of \$56,713.50, a .15 multiplier of \$8,507.02, and \$2,076.65 in costs.[1]

In Morris

v. Hyundai Motor Am. (2019) 41 Cal. App. 5th 24, 41, the trial court reduced the rates of Bryan Altman of the Altman Law Group, who has 30-plus years of litigation experience with over 100 jury trials, of which 20-plus were as lead trial counsel in lemon law cases, from \$650 to \$500 per hour, reduced Steve Mikhov of the Knight Law Group from \$500 to \$400, and reduced all the associates' rates that ranged from \$450 to \$350 to \$300 per hour. (Id. at 8-9.) In support of the lower court decision, the Court of Appeal held that:

[E]ven if

Morris established that her attorneys' rates were generally commensurate with other consumer law attorneys with the same level of experience and skill, Morris ignores that there are a number of factors that the trial court may have taken into consideration in determining that reductions in the attorneys' hourly rates were warranted. The court reasonably could have reduced the rates based on its finding that the matter was not complex; that it did not go to trial; that the name partners were doing work that could have been done by lower-billing attorneys; and that all the attorneys were doing work that could have been done by paralegals.

(Id.

at pp. 23-24.)

Similarly,

Judge Randolph Hammock of the Los Angeles County Superior Court recently found rates of \$350 per hour appropriate for an "experienced" lawyer to take a lemon law case all the way through trial. (See Mikhaeilpoor v. BMW of N. Am., LLC (2020) 48 Cal.App.5th 240, 245-46 ["The court found the requested fee amount "was just not reasonable."... The court decided that \$350 "is a reasonable hourly rate for the services that were done."].)

Here, the

Court reduces counsels' hourly rates to a blended rate of \$550, consistent with Mikhaeilpoor. In support of this reduction, the Court notes that the matter was not complex, the case did not go to trial, and discovery was rote.

Hours

Counsel

claimed 98.2 hours of work by 7 different timekeepers.

A review of

the billings records suggest excessive billing and padding. For example, Kristopher Storti contributed a single hour of work towards the case, Otis R. Hayes III, contributed just 2.5 hours, Brian Kim contributed 2.8 hours work, and Deборе Rabieian only 3.8 hours.

Given the

Court's power to make "across-the-board percentage cuts either in the numbers of hours claimed or in the final lodestar figure," the Court finds only 40 hours reasonably spent. (Gonzalez v. City of Maywood (9th Cir.

2013) 729 F.3d 1196, 1203 (Gonzalez).

$(\$550 \times 40 \text{ hrs} = \$22,000.)$

Lodestar Enhancement

Plaintiff

requests a .15 lodestar enhancement based on the contingency nature of the case and the quality of the work performed.

Relevant

factors to determine whether an enhancement is appropriate include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (Ketchum v. Moses (2001)

24 Cal.4th 1122, 1132.)

Here, the

hourly rates set forth above capture the skill and the contingent nature. Thus, any multiplier would be duplicative of the calculations set forth above.

Based on the

foregoing, Plaintiff is awarded \$22,000 in attorney fees.

It is so ordered.

Dated: September

, 2026

Hon. Jon R.

Takasugi

Judge of the

Superior Court

Parties who intend to submit on this tentative must send an email to the court at smcdept17@lacourt.org by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative.

If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.

[1]

Defendant has filed a motion to tax costs. Accordingly, the Court declines to consider the cost request here and limits its analysis to the attorney fees alone.